

MD Buyline, Inc. Amended Order Schedule for Mt. Sinai Health System ("Member")

This Amended Order Schedule is entered into by The Icahn School of Medicine at Mount Sinai and MD Buyline, Inc. ("MD Buyline") and, except as may expressly set forth herein, is governed by that certain Membership Agreement effective April 1, 2014 by and between the undersigned parties (the "Membership Agreement"). All terms not otherwise defined herein shall have the meaning set forth in the Membership Agreement. This Amended Order Schedule amends and replaces the [Order Schedule set forth in the Membership Agreement] [Amended Order Schedule effective as of January 1, 2015].

WHEREAS, the Parties to the Agreement desire to amend the Agreement to reflect that as of the Effective Date the parties to the Agreement shall be The Icahn School of Medicine at Mount Sinai, a New York Education Corporation and The Mount Sinai Hospital, a New York Not For Profit Corporation both having a principal place of business at One Gustave L. Levy Place, New York, N.Y. 10029 and Beth Israel Medical Center, with a principal place of business at First Avenue at 16th Street, New York, N.Y. 10003, St. Luke's-Roosevelt Hospital Center, with a principal place of business at 1000 Tenth Avenue at 59th Street, New York, N.Y. 10019, and The New York Eye and Ear Infirmary, with a principal place of business at 310 East 14th Street, New York, N.Y. 10003, all New York Not For Profit Corporations (all corporations referred to collectively herein as the "Mount Sinai Entities").

Notwithstanding anything to the contrary in the Agreement or herein, the Supplier acknowledges that each of the Hospitals is separately incorporated and shall be responsible to pay only for the products it receives. Under no circumstances shall any Hospital be responsible for any payments, duties, or obligations with respect to any supplies received by another Hospital, neither will any breach or other basis for termination by one Hospital be chargeable to any other Hospital. Suppliers billing shall clearly indicate which Hospital received which products.

Supplier agrees that all purchases by Customer hereunder shall be payable by American Express Buyer Initiated Payments (BIP) in accordance with Supplier's separately executed agreement with American Express. For purchases not paid through BIP, both parties agree to payment terms for invoices payable in ninety (90) days.

Termination:

The member may terminate this agreement at each anniversary date without cause with written notice at least 90 days prior to the date of the first anniversary. If written notice is not received at least 90 days prior to the anniversary, the member will be committed to the remaining term.

In the case of a merger or acquisition of an entity that does not have an existing contract with MD Buyline, The Mount Sinai Entities will be entitled to use MD Buyline for that newly added entity, at no cost for through the next anniversary date at which time a mutually agreed upon rate to add the new entities will be applied.

Compliance, Fraud Waste and Abuse Prevention; Whistleblower Protection:

Vendor agrees to abide by all pertinent policies and procedures of Mount Sinai Health System ("Mount Sinai"), including but not limited to its Corporate Compliance Code of Conduct which is available at www.mountsinai.org. Vendor shall comply with the applicable requirements of the federal Deficit Reduction Act of 2005 ("DRA"), including but not limited to Mount Sinai's DRA policy, and will promptly report to Mount Sinai's Corporate Compliance Office suspected or actual violations related to fraud, waste or abuse. Vendor represents and warrants that neither it, nor any of its employees assigned to Mount Sinai have been convicted of an offense related to health care or listed by a federal or state agency as being debarred, excluded, or otherwise ineligible for federal or state program participation. Vendor shall be responsible for screening its Mount Sinai engagement team employees against the federal OIG List of Excluded Individuals and Entities ("LEIE"), the federal System for Award Management ("SAM") Excluded Parties List, and the New York State Office of the Medicaid Inspector General ("OMIG") list of Restricted, Terminated or Excluded Individuals or Entities. Vendor agrees to immediately notify Mount Sinai's Corporate Compliance Office should the name of any Mount Sinai engagement team employee appear on any of these exclusion lists.

Patient Privacy and HIPAA:

If the Vendor will utilize or receive any protected health information in the course of providing the Services, the Vendor shall sign the Mount Sinai HIPAA Business Associate Agreement. If Vendor will not be receiving or utilizing any protected health information in the course of providing the services, it shall nevertheless agree that in the event that notwithstanding that intention, Vendor comes in contact with such information, Vendor will promptly notify Mount Sinai and take such remedial steps, at the direction of Mount Sinai, as may be required by applicable law. Vendor shall comply with all applicable federal and state laws with respect to medical record confidentiality and privacy, including without limitation New York Public Health Law Article 27-F and HIPAA and accompanying regulations. Vendor also agrees that it shall keep confidential and shall not disclose any proprietary information of Mount Sinai that it may have access to or use such information for its own benefit or that of any third

party. Vendor shall not use the name of Mount Sinai or the name, insignia or symbols of Mount Sinai its physicians or departments, or any variation thereof, for any purpose whatsoever, without the prior written consent of Mount Sinai, except for disclosures required by law or regulation. This section shall survive the termination or conclusion, for whatever reason, of this Agreement.

Insurance and Indemnification:

Each party shall defend, indemnify and hold harmless Customer and Customer's the other party and its affiliates and their respective shareholders, directors, officers, trustees, physicians, employees and agents from and against any and all suits, penalties, claims, and costs (including attorneys' fees) brought against the Indemnified Parties based or arising from: (a) a breach by the indemnifying Party of any of its representatives, warranties, or obligations, under this Agreement or (b) any negligent or more culpable act or omission of the indemnifying Party or its affiliates or subcontractors or any of their respective employees or agents, relating to the activities, Products, and equipment subject to or sold pursuant to this Agreement.

(1) The Vendor shall, at its own expense, purchase and keep in force throughout the term of this Agreement the following minimum insurance coverages with such insurers as shall be acceptable to Customer:

- (a) workers' compensation coverage and disability coverage required by applicable state law and employers' liability coverage;
- (b) comprehensive commercial general liability coverage written on an occurrence basis, including:
 - (i) personal injury and bodily injury (including, without limitation, death and occupational sickness and disease);
 - (ii) contractual liability coverage insuring liabilities assumed by the Vendor under this Agreement;
 - (iii) property damage liability;
- (c) comprehensive automobile liability covering liability arising out of any auto, including owned, hired and non-owned vehicles.

The minimum limits of coverage for the insurance specified in subsections (b) and (c) of paragraph 1 shall be the greater of the usual limits carried by the Vendor or the following:

- (a) combined single limit of at least \$ 1million/\$2million for bodily injury, personal injury and property damage per occurrence.

(3) The Vendor's commercial general liability and commercial automobile liability insurance coverages shall name Customer as an additional insured on a primary and non-contributory basis with respect to any applicable insurance carried by the Customer.

(4) Prior to any work being performed under this Agreement, and prior to any subsequent policy expiration, the Vendor shall deliver to Customer certificates of insurance, and policy endorsements when requested, evidencing that the coverages specified in this section are in effect. Such certificates shall show that:

- a. Customer is an additional named insured as required;
- b. the insurer shall give Customer thirty (30) days written notice sent by registered mail of any material change in, or cancellation of, such insurance;
- c. the indemnity agreement set forth in this Agreement is covered, and
- d. the commercial general liability and commercial automobile liability insurance is specifically primary of, and noncontributory to, any applicable insurance carried by Customer.

Member hereby orders and MD Buyline hereby agrees to provide the following Services/Products:

1. ORDER SCHEDULE

A. General:

Service/Product Name	Amendment	Maximum Authorized Users	Start Date	Agreed Term from Start Date	Annual Fee \$*
Buyline Capital	Amendment	Unlimited	4/1/2015	36	\$90,525
Buyline HCIT	Amendment	Unlimited			
Buyline Recall Tracker	Amendment	Unlimited			
SmartMatch	Amendment	Unlimited			

*This fee will be prorated for January 1, 2015 ending March 31, 2015 for a total amount due of \$22,631.25.

B. Service/Product Descriptions:

The following describes each Service/Product purchased, specifies the deliverables for each Service/Product, and sets forth any additional terms unique to a specific Service/Product.

Service / Product Name / Level of Access / Description
Buyline Capital – Industry-leading analytics and research platform combined with custom expert analysis to provide members with the financial, clinical, and operational information they need to maximize their medical capital investments.
Buyline HCIT – Industry-leading analytics and research platform and custom expert analysis provides interoperability, product performance, and price benchmarking information across all healthcare information technology categories.
Buyline Recall Tracker – Easy-to-use tool to address product recalls efficiently and accurately, including audit-quality assurance reports and customized, role-based workflows designed to accommodate single- and multi-facility healthcare systems.
SmartMatch – Personalized approach to tracking and identifying recalls relevant to your facility that improves efficiency and reduces risk by automatically matching recalls to your facility's purchase history.

C. Covered Entities/Facilities:

The following sets forth the Member's entities/facilities entitled to receive the Service/Products set forth above:

Name	Address	# of Licensed Beds
The Icahn School of Medicine at Mount Sinai	1468 Madison Avenue New York, 10029	0
The Mount Sinai Hospital – Manhattan Campus	1468 Madison Avenue New York, 10029	1171
The Mount Sinai Hospital – Queens Campus	25-10 30 th Avenue Long Island City, NY 11102	212
Beth Israel Medical Center – Petrie Campus	1 st Avenue at 16 th Street New York, NY 10003	505
Beth Israel Medical Center - PACC	10 Union Square East New York, NY 10003	
Beth Israel Medical Center – Brooklyn Campus	3201 Kings Highway Brooklyn, NY 11239	523
Luke's-Roosevelt Hospital Center – Roosevelt Campus	1000 Tenth Avenue New York, NY 10019	235
St. Luke's-Roosevelt Hospital Center – St. Luke's Campus	1111 Amsterdam Avenue New York, NY 10025	856
The New York Eye and Ear Infirmary	310 East 14 th Street New York, NY 10003	0
Total Licensed Beds:		3502

If member acquires facilities with existing MD Buyline agreement or if member is acquired by another MD Buyline member, the better of the agreement will be put into effect with an amendment detailing such terms, at that time.

D. Primary GPO Designation:

Member's primary Group Purchasing Organization is set forth below:

Primary GPO	GPO ID #
GNVHA/Premier	

Member acknowledges they are not a group purchasing organization and the services received under this agreement are for the use of only Member owned and operated facilities listed under this agreement.

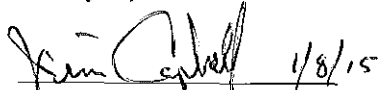
By signing below, the Member represents that it has read and understands the provisions of this Amended Order Schedule, as well as the terms and conditions set forth in the Membership Agreement. This Amended Order Schedule is executed to be effective as of the last date stated below (the "Effective Date").

Member:

 1/8/15
Signature / Date

Melissa Trinidad,
Print Name and Title Dir, Sourcing

MD Buyline, Inc.:

 1/8/15
Signature / Date

Jim Campbell CFO
Print Name and Title